

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
WADE NOEL,

Plaintiff,

-against-

POLICE OFFICER EDUARDO LOPEZ and THE CITY OF
NEW YORK,

Defendants.
-----X

Index No.:

Date Purchased:

SUMMONS

Plaintiff designates

KINGS

County as the place of trial.

The basis of venue

Place of Occurrence

Plaintiff resides at:

50 Saratoga Avenue

West Babylon, New York 11704

To the above named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York

December 13, 2024

Andrew M. Friedman

ANDREW M. FRIEDMAN, ESQ.

FRIEDMAN SANCHEZ, LLP

Attorneys for Plaintiff

16 Court Street, 26th Floor

Brooklyn, New York 11241

(718) 797-2488

TO: POLICE OFFICER EDUARDO LOPEZ

1 Police Plaza Path

New York, NY 10038

THE CITY OF NEW YORK

100 Church Street

New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
WADE NOEL,

Plaintiff,

Index No.:

-against-

VERIFIED COMPLAINT

POLICE OFFICER EDUARDO LOPEZ and THE CITY OF
NEW YORK,

Defendants.

-----X

Plaintiff, WADE NOEL, by his attorneys, FRIEDMAN SANCHEZ, LLP, complaining of
Defendants, POLICE OFFICER EDUARDO LOPEZ and THE CITY OF NEW YORK, alleges,
upon information and belief, the following:

1. At all times hereinafter mentioned, Plaintiff, WADE NOEL, was, and still is, a
resident of the County of Suffolk, Town of Babylon and State of New York.

2. At all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, was,
and still is, a municipal corporation duly organized and existing under, and by virtue of, the laws
of the State of New York, with the power and authority to carry out municipal functions.

3. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK
operated and controlled a department known as The New York City Police Department.

4. At all times hereinafter mentioned, Defendant POLICE OFFICER EDUARDO
LOPEZ was employed as a police offer with the New York City Police Department by Defendant
THE CITY OF NEW YORK.

5. Prior hereto, within the time prescribed by law, Plaintiff, WADE NOEL, served a
sworn Notice of Claim on the Comptroller of the City of New York, stating, among other things,

the time when and place where the damages were sustained, together with Plaintiff's demands for adjustment thereof.

6. Thereafter, said Comptroller of the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof.

7. That on August 30, 2024, pursuant to General Municipal Law §50(h), a hearing was held.

8. The present action is being commenced within one year and ninety days after the within claims arose.

9. At all relevant times, THE CITY OF NEW YORK, acting through The New York City Police Department, was responsible for the policy, practice, supervision, implementation and conduct of all New York City Police Department matters and was responsible for the appointment, training, supervision, and conduct of all New York City Police Department personnel.

10. At all times relevant herein, THE CITY OF NEW YORK was responsible for ensuring that New York City Police Department personnel obey the laws of the United States and New York State.

11. Defendant, THE CITY OF NEW YORK, assumes the risks incidental to the maintenance of a police force and the employment of police officers.

12. Defendant THE CITY OF NEW YORK is vicariously responsible for the actions of its police officers.

13. The New York City Police Department is responsible for the actions of its police officers.

14. On November 18, 2023, The New York City Police Department employed defendant POLICE OFFICER EDUARDO LOPEZ and other officer(s) (hereinafter, EDUARDO LOPEZ and other officer(s) collectively, “Arresting Officers”) involved in the incident set forth hereinafter, whose names are unknown to Plaintiff.

15. On November 18, 2023, THE CITY OF NEW YORK was responsible for the actions of the Arresting Officers.

16. The Arresting Officers were at all times acting under color of state law, to wit, under color of the statutes, ordinances, customs, policies and/or practices of the State of New York and/or City of New York and Defendants were also acting within the scope of and in furtherance of their employment.

17. At all times relevant herein, each of the Arresting Officers acted under color of law in the course and scope of his or her duties and functions as an agent, employee, servant and/or officer of The City of New York and/or New York City Police Department in engaging in the conduct described herein.

18. At all times relevant herein, the Arresting Officers have acted for and on behalf of The City of New York and/or The New York City Police Department, and incidental to the lawful pursuit of their duties as officers, agents, employees and/or servants of The City of New York and/or the New York City Police Department.

AS AN FOR A FIRST CAUSE OF ACTION

19. Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs “1” through “18” inclusive of the complaint herein with the same force and effect as if fully set forth herein at length.

20. On or about November 18, 2023, Plaintiff, WADE NOEL, was lawfully in front of the premises located at 1925 Nostrand Avenue, in the County of Kings, City and State of New York.

21. That at the aforesaid time and place, Plaintiff, WADE NOEL, was arrested by the Arresting Officers of The New York City Police Department.

22. At the time of the aforesaid arrest and detention of Plaintiff, the Arresting Officers were acting within the scope of their authority and employment, and their acts herein alleged were done in furtherance of the business and in the interest of defendant, THE CITY OF NEW YORK.

23. Said arrest and detention of Plaintiff by the Arresting Officers constituted a false arrest and false imprisonment, done maliciously and/or negligently without any warrant or pretense of legal process, and without any just, reasonable or probable cause or provocation, willfully, wantonly, maliciously, recklessly, and without any fault whatsoever on the part of the plaintiff, contrary to law.

24. Upon information and belief, the Arresting Officers had actual knowledge of the lack of a lawful basis on which to arrest and detain plaintiff and/or willfully ignored, or were negligent in failing to observe and discern, clear warning signs of the lack of any such lawful basis.

25. During the course of this arrest the Plaintiff, WADE NOEL, was subjected to excessive use of force, assaulted, battered, handcuffed and otherwise attacked as a result of which plaintiff was caused to sustain and suffer serious personal injuries.

26. Upon information and belief, said negligence and deliberate indifference of the Arresting Officers caused plaintiff to suffer emotional distress and humiliation, mortification, shame, disgrace, and mental pain, for which he has sought, and may seek in the future, medical and therapeutic care and treatment.

27. As a result of the foregoing, Plaintiff demands judgment against defendants in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

28. Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs “1” through “27” inclusive of the complaint herein with the same force and effect as if fully set forth herein at length.

29. In the course of Plaintiff’s arrest, the Arresting Officers, upon information and belief, of The New York City Police Department, physically assaulted Plaintiff, by, among other things, throwing Plaintiff down to the ground, and using excessive force to handcuff plaintiff while plaintiff was injured.

30. Said acts of assault committed by the Arresting Officers occurred notwithstanding the lack of any resistance on Plaintiff’s part.

31. As a result of said assault of Plaintiff by the Arresting Officers, Plaintiff was caused to suffer emotional distress and humiliation, mortification, shame, disgrace, mental pain, as well as serious physical injuries, for which he has sought, and may seek in the future, medical and therapeutic care and treatment.

32. As a result of the foregoing, Plaintiff demands judgment against defendants in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

33. Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs “1” through “32” inclusive of the complaint herein with the same force and effect as if fully set forth herein at length.

34. Defendant THE CITY OF NEW YORK failed to exercise reasonable care in selecting the Arresting Officers as police officers and in training said police officers in the skills necessary to exercise their authority.

35. Prior to, and during the acts herein complained of, defendant THE CITY OF NEW YORK knew, or in the exercise of reasonable care, should have known of the propensity of the Arresting Officers to act unlawfully in the pursuit of their duties and functions.

36. Notwithstanding the foregoing, defendant THE CITY OF NEW YORK entrusted the power and authority to act as police officers to the Arresting Officers and subsequently failed to adequately supervise said defendants in the exercise of their duties and functions.

37. By reason of the said negligence of defendant THE CITY OF NEW YORK, plaintiff was falsely arrested, and/or physically assaulted by the Arresting Officers causing injuries both mental and physical from which plaintiff has suffered and continue to suffer.

AS AND FOR A FOURTH CAUSE OF ACTION

38. Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs “1” through “37” inclusive of the complaint herein with the same force and effect as if fully set forth herein at length.

39. By reason of the aforementioned, the Plaintiff, WADE NOEL, suffered physical damages, suffered great mental anguish and was deprived of his constitutional rights.

40. Defendants’ negligent and/or intentional acts and/or omissions while acting under color of state law, subjected plaintiff to an unreasonable search and seizure, and false arrest, and

false imprisonment in violation of Plaintiff's rights under the United States Constitution and the New York State Constitution.

41. Defendants, their servants, agents and/or employees, acted with malicious and wanton and/or negligent disregard of the constitutional rights of plaintiff secured by the Fourth and Fourteenth Amendments of the United States Constitution and the New York State Constitution.

42. The aforementioned acts of each of the defendants deprived Plaintiff, WADE NOEL, of the privileges and immunities guaranteed to plaintiff as a citizen of the United States, by Amendments IV, V, and Section I of Amendment XIV of the Constitution of the United States and by the Constitution of the State of New York.

43. As a direct and proximate result of the Defendants' actions, Plaintiff, WADE NOEL, was deprived of rights, privileges and immunities secured to him under the Constitution and laws of New York and United States, including, but not limited to their rights under the Fourth, Eighth and Fourteenth Amendments of the United States Constitution and 42 U.S.C Section 1983.

44. The aforementioned acts of the Defendants constituted cruel and unusual punishment of plaintiff WADE NOEL and as such violated amendment VIII of the Constitution of the United States and of the State of New York.

45. By reason of the foregoing, Defendants are liable to Plaintiff pursuant to Title 42 of the United States Code, including but not limited to §1983 thereof.

46. That by reason of the foregoing, Plaintiff, WADE NOEL, has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

47. Pursuant to 42 U.S.C. §1988, Plaintiff is entitled to a reasonable allowance for attorneys' fees.

48. As a result of the foregoing, Plaintiff demands judgment against Defendants in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

49. Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs “1” through “48” inclusive of the complaint herein with the same force and effect as if fully set forth herein at length.

50. That on November 18, 2023, Plaintiff, WADE NOEL, was arrested by the said Defendants, their agents, servants, and employees at the aforesaid location.

51. This arrest was effectuated by Defendants without probable cause and without any semblance of a lawful basis. Defendants at the time of this arrest knew or should have known that the allegations, or any future allegations, as to Plaintiff, WADE NOEL, would be false.

52. Solely by reason of the foregoing Plaintiff, WADE NOEL, was deprived of his liberty, subjected to ridicule, scorn and derision by those knowing of his arrest and was deprived of the society and companionship of his family, and was otherwise greatly harmed and injured.

53. That by reason of the foregoing, Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

WHEREFORE, Plaintiff demands judgment against defendants in an amount that exceeds the jurisdictional limits of all lower courts, together with punitive damages, interest, and the costs and disbursements of this action.

Dated: Brooklyn, New York
December 13, 2024

Andrew m. Friedman

ANDREW M. FRIEDMAN, ESQ.
FRIEDMAN SANCHEZ, LLP
Attorneys for Plaintiff
16 Court Street, 26th Floor
Brooklyn, New York 11241
(718) 797-2488

ATTORNEY'S VERIFICATION

ANDREW M. FRIEDMAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an associate at **FRIEDMAN SANCHEZ LLP**, attorneys of record for Plaintiff(s),

WADE NOEL

I have read the annexed

SUMMONS AND COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

Dated: Brooklyn, New York
December 13, 2024

Andrew M. Friedman

ANDREW M. FRIEDMAN, ESQ.